

Bablu @ Ramakant v. Jhabbu Lal, Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Single Judge · 16 November 2019 · Contempt Application (Civil) No. 7550 of 2019 · **Contempt disposed; one more opportunity to comply with Clause 6.5 direction.**

HEADNOTE

Contempt of a writ order relegating a bill-correctness dispute to Clause 6.5 of the U.P. Electricity Supply Code, 2005. Prima facie non-compliance by the Executive Engineer was found, but the Court granted three weeks to consider the application in accordance with law and disposed of the contempt with liberty to apply afresh if the direction remained uncomplied.

FACTUAL SUMMARY

The applicant had challenged the correctness of his electricity bill in Writ C No. 25745 of 2018. On 8 August 2018 the High Court declined to entertain the writ, relegating him to Clause 6.5 of the U.P. Electricity Supply Code, 2005, and directing that any application to the appropriate authority be considered in accordance with law. He alleged that, despite producing a certified copy, the Executive Engineer of Dakshinanchal Vidyut Vitran Nigam Ltd wilfully failed to comply, and sought civil contempt.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

contempt-of-clause-6.5-consider-direction

HOLDING

Where a consumer's bill-correctness dispute has already been relegated to Clause 6.5 of the U.P. Electricity Supply Code, 2005, with a direction that the application be considered in accordance with law, wilful non-consideration by the Executive Engineer makes out a prima facie case of civil contempt; the Court may still grant a further opportunity to comply within a fixed time and dispose of the contempt with liberty to apply afresh if the direction remains uncomplied.

¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE BILL-CORRECTNESS OBJECTION UNDER CLAUSE 6.5

The Court did not examine the bill; it only required compliance with the earlier consider-in-accordance-with-law direction. ¶ 1